

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12

Honorable Nahal Iravani-Sani, Presiding

Courtroom Clerk, Ryan Nguyen
191 North First Street, San Jose, CA 95113
Telephone: (408) 882-2230

DATE: 08/19/2026 TIME: 9:00 A.M. and 9:01 A.M.

Welcome to Department 12. The Court's tentative rulings for the Law & Motion Calendar are below.

TO CONTEST THE RULING: Before 4:00 p.m. ON THE DAY PRIOR TO THE HEARING, YOU MUST NOTIFY:

- (1) The Court - by calling (408) 808-6856 and/or email Department12@scscourt.org
- (2) Opposing side - by phone or email that you plan to appear and contest the ruling.

The Court will not hear argument and the tentative ruling will be adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.D.)

****Please indicate the specific issue being contested when calling/emailing the Court and counsel****

IN-PERSON APPEARANCES: Department 12 is a fully open courtroom conducting in-person hearings on the days it has scheduled matters. The Court strongly encourages in-person appearances for any **contested** law-and-motion matter. If appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not permitted absent exceptional circumstances. (Civil Local Rule 5.B.)

REMOTE APPEARANCES: Remote appearance is governed by Civil Local Rule 5 and General Local Rule 9. Department 12 uses UDC as its remote platform.

The Court encourages in-person appearance, but if appearing remotely, **VIDEO IS REQUIRED**. Audio only appearances are not allowed absent exceptional circumstances. (Civil Local Rule 5.B.)

TELEPHONIC APPEARANCE IS PROHIBITED, unless the Court grants an exception. (Civil Local Rule 5.A.) "CourtCall" is no longer available.

RECORDING IS PROHIBITED: State and local court rules prohibit recording court proceedings without a court order. This prohibition applies to both in-person and remote appearances.

COURT REPORTERS ARE NOT PROVIDED: If any party wishes to have a court reporter, the appropriate forms and process may be found on the court's website
https://www.scscourt.org/general_info/court_reporters.shtml.

SCHEDULING MOTION HEARINGS: Please reserve your next hearing date using Court Schedule—an online scheduling tool on the Santa Clara County court website.

<https://reservations.scscourt.org> or call 408-882-2430 between 8:30 a.m. and 12:30 p.m. (Mon.-Fri.) You must then file your motion papers no more than five court days after reserving the hearing date, or the date will be released to other cases.

FINAL ORDERS: The prevailing party shall prepare the order unless otherwise ordered. (See California Rule of Court 3.1312.) **Please Note:** Any proposed orders must be submitted with the Judicial Council Form EFS-020 Proposed Order (Cover Sheet). Please include the date, time, department and line number.

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LINE #	CASE #	CASE TITLE	RULING
LINE 1	23CV424431	Eslambolchizadeh v. Sonicwall Inc.	MOTION TO COMPEL Off Calendar per Stipulation and Order 8/12/2026
LINE 2	23CV425156	Katrina Vallejo et. al v. Richard Hansen et al.	MOTION FOR TRIAL PREFERENCE Plaintiff's motion for trial preference pursuant to CCP section 36(b). Notice is proper. The Court has received no opposition from Defendants. "[T]he failure to file an opposition creates an inference that the motion or demurrer is meritorious." (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.) Good Cause Appearing, Plaintiff's motion is granted. The case shall proceed to trial within 120 days. Counsel to meet and confer and appear on 8/19/26 for trial re-setting scheduling. (Please be advised the Court is DARK the weeks of 12/21/26 and 12/28/26.) Plaintiff to prepare the final order, accompanied by the necessary Forms EFS-020, within 7 days of the date of the hearing.
LINE 3	24CV438575	H.J. v. Doe 1 and County of Santa Clara	DEMURRER Please Ctrl Click (or scroll down to) Line 3
LINE 4	25CV456689	Richard Chamberlain v. Santa Clara Public Defender's Office et al.	MOTION TO COMPEL PRODUCTION OF DOCUMENTS Please Ctrl Click (or scroll down to) Line 4
LINE 5	25CV457483	Richard Chamberlain v. Jason Chamberlain	MOTION TO STRIKE Moot in light of ruling on Motion for Summary Judgement; Off calendar
LINE 6	25CV463225	Bejar Moreno et al. v. Bernice Chavez	MOTION TO COMPEL Off calendar per dismissal filed 8/6/2026
LINE 7 LINE 8	25CV471884	Tominaga et al. v. Palo Alto Cuisine, et al.	DEMURRER & MOTION TO STRIKE Please Ctrl Click (or scroll down to) Line 7 - 8

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LINE 9	25CV480131	Lumenis Be Inc. v. Iyad Radwan	PETITION TO CONFIRM THE ARBITRATION AWARD Please Ctrl Click (or scroll down to) Line 9
LINE 10	26CV485647	Park Capital Management, LLC V. Orchard Yield Funds, LLC	MOTION: APPLICATION TO EXPEL Please Ctrl Click (or scroll down to) Line 10
LINE 11 LINE 12	25CV477676	Linda Johnson, et al. v. Hanford Hotels, Inc.	COMPROMISE OF MINOR'S CLAIM & SEALING ORDER Please Ctrl Click (or scroll down to) Line 11-12
9:01 Line 1	24CV430838	Eli Garten et al. V Shaw Industries Group, Inc. et al	MOTION TO WITHDRAW AS ATTORNEY Defense counsel Bruce E. Zuchowski moves to be Relieved as Counsel for Chris Haltom Floors, Inc. pursuant to Code of Civil Procedure Section 284(2), with his client's support. This matter is scheduled for jury trial October 5, 2026. Prior motion to continue trial by other defendants was denied. Corporate defendants may not appear in propria persona through an officer, director, or shareholder. Failure to timely obtain substitute counsel may result in the striking of its pleadings, entry of default, dismissal of its claims, or such other sanctions as are authorized by law. Motion to withdraw as attorney is DENIED without prejudice, to matter being STAYED pending bankruptcy proceedings as to this defendant, or substitute counsel appearing and indicating readiness to proceed to trial. Parties on both sides ordered to appear at hearing.

Calendar Line 3

Case Name: *J.H. v. County of Santa Clara*

Case No.: 24CV438575

BACKGROUND

Plaintiff J.H. (“Plaintiff”) initiated this action against defendant County of Santa Clara (“Defendant” or “the County”) on May 7, 2024. On December 12, 2024, Plaintiff filed a first amended complaint. The parties then stipulated to the filing of a second amended complaint (“SAC”) and the SAC was filed on November 17, 2025.

According to the allegations of the SAC, Plaintiff was in foster care from the age of approximately eight years old, beginning in April 1979. (SAC, ¶¶ 27-28.) Plaintiff was taken to the Santa Clara County Children’s Shelter (“the Shelter”) and remained there until November 1979. (SAC, ¶ 29.) Plaintiff was placed under the care of Stan Heimowitz (“Heimowitz”), a case worker. (SAC, ¶ 30.)

After arriving at the Shelter, a male employee named “Nick”¹ introduced himself to Plaintiff and thereafter began grooming him for abuse by giving him candy and special privileges that he did not give to other boys. (SAC, ¶ 31.) “Nick” then began sexually assaulting and abusing Plaintiff, including by representing to Plaintiff that his mother had to come to visit him and taking him to a secluded room. (SAC, ¶ 32.) The sexual abuse continued daily throughout Plaintiff’s stay at the Shelter. (SAC, ¶¶ 33, 34.) “Nick” threatened Plaintiff, including telling him not to tell anyone about the abuse because nobody would believe him. (SAC, ¶ 35.)

In December 1979, Defendant entrusted Plaintiff’s care to Carolyn Hamilton Dayes (“Dayes”), who then sexually abused Plaintiff daily from the time he arrived at 8 until 15-years old. (SAC, ¶¶ 36-37, 38.) Dayes accomplished the abuse by both physical force and using her status as a lawyer to intimidate and threaten Plaintiff. (SAC, ¶ 39.) During the ongoing course of the sexual abuse, the abuse was reported to Defendant County of Santa Clara’s caseworker, Heimowitz. No investigation or action was taken and the sexual abuse and assault on Plaintiff continued. (SAC, ¶ 40.)

Plaintiff suppressed the sexual abuse for decades but as an adult, he discovered he had difficulty functioning and suffered from depression, anxiety, among other things. (SAC, ¶¶ 42, 44, 45, 46.) As a child, Plaintiff was led to believe that the sexual abuse was his own fault and that he was deserving of the abuse. (SAC, ¶ 43.) In or around December 2023 and January 2024, Plaintiff began to discover the true cause of his injuries and that many other foster children had similar experiences. (SAC, ¶ 47.) These discoveries rematerialized Plaintiff’s suppressed memories. (SAC, ¶ 48.)

The SAC asserts one claim for negligence against the County and another claim for negligence against Does 11 through 25.

On December 21, 2025, Defendant filed a demurrer to the SAC. Plaintiff opposes the motion.

¹ “Nick’s” full name is unknown to Plaintiff. (SAC, ¶ 31.)

LEGAL STANDARD

In ruling on a demurrer, the Court treats it “as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) “A demurrer tests only the legal sufficiency of the pleading. It admits the truth of all material factual allegations in the complaint; the question of plaintiff’s ability to prove these allegations, or the possible difficulty in making such proof does not concern the reviewing court.” (*Committee on Children’s Television, Inc. v. General Foods Corp.* (1983) 35 Cal.3d 197, 213-214.)

DISCUSSION

Defendant demurs to the SAC on the following grounds: 1) it is time-barred; 2) the SAC fails to plead facts of sufficient notice of the alleged sexual abuse; 3) the SAC fails to plead with particularity how breach of a mandatory duty proximately caused Plaintiff’s injuries; 4) the SAC fails to plead facts showing the claim falls outside the breadth of applicable statutory immunity; and 5) the SAC fails to plead facts supporting boilerplate allegations of a cover-up, which cannot be asserted against a public entity.

Plaintiff’s main argument in opposition is that the filing of a third amended complaint will cure the defects raised by the demurrer. (E.g., Opposition, p. 7:1-4.) Given that this is the first pleading challenge, and Plaintiff has indicated he seeks to amend his pleading, and how he will do so, the Court will sustain the demurrer with leave to amend. (See *City of Stockton v. Superior Ct.* (2007) 42 Cal.4th 730, 747 [“If the plaintiff has not had an opportunity to amend the complaint in response to [a] demurrer, leave to amend is liberally allowed as a matter of fairness, unless the complaint shows on its face that it is incapable of amendment.”].) However, because this will be the third amended complaint, it will be the last opportunity for Plaintiff to amend his pleading to state a claim against Defendant. Should Defendant take issue with the allegations of the third amended complaint, it may then file another pleading motion or motion for summary judgment/adjudication. The Court will not address the remaining arguments.

Accordingly, Defendant’s demurrer is SUSTAINED with 15 days leave to amend.

The Court will prepare the final order.

Calendar line 4

Case Name: *Richard Chamberlain v. Santa Clara County Public Defender's Office, et al.*

Case No.: 25CV4566809

PLAINTIFF'S MOTION TO COMPEL

Plaintiff Richard Chamberlain moves to compel named Defendant Santa Clara County District Attorney's Office ("DAO") to serve documents to Plaintiff's First Set of Request for Productins of Documents (Set One), and seeks \$1,500 in monetary sanctions.

Plaintiff Richard Chamberlain moves to compel Defendant Santa Clara County District Attorney's Office ("DAO") to serve verified responses, without objection, to Plaintiff's First Request for Production of Documents (Set One), and seeks monetary sanctions.

The motion is DENIED without prejudice.

A plaintiff may make a demand for inspection, copying, testing, or sampling of documents to a party only after the time specified in Code of Civil Procedure section 2031.020. The party to whom the demand is directed must serve a timely response. (Code Civ. Proc., §§ 2031.010, 2031.020, 2031.030.) If a party fails to serve a timely response, the propounding party may move for an order compelling a response. (Id., § 2031.300.)

Here, Plaintiff served the document requests on December 15, 2025. The proof of service identifies Deputy County Counsel Mark Bernal as a recipient. Mr. Bernal's declaration (for the August 12, 2026 Motion to Compel in this action which the court takes judicial notice of) establishes that he represents the Santa Clara County Public Defender's Office, not the DAO, and that the DAO has neither been served with the summons and complaint nor appeared in this action. Plaintiff has not shown otherwise.

Accordingly, Plaintiff has not established that the document demands were properly propounded on the DAO or that the DAO was subject to a duty to respond under the Civil Discovery Act. The statutory basis for an order compelling responses under section 2031.300 is therefore absent.

The Court need not determine on this motion whether the DAO is a proper defendant or separately suable entity. Nothing in this ruling precludes Plaintiff from pursuing discovery through procedures authorized by the Code of Civil Procedure.

Accordingly, Plaintiff's Motion to Compel Production of Documents (Set One) to Defendant Santa Clara County District Attorney's Office is DENIED without prejudice. The request for \$1,500 in monetary sanctions is DENIED as not applicable.

The Court will prepare the Order.

Calendar Line 7 - 8

Case Name: Xiaoyan “Stacey” Tominaga, et al. v. Palo Alto Cuisine d.b.a. Imperial Treasure, et al.

Case No.: 25CV471884

Plaintiffs Xiaoyan “Stacey” Tominaga (“Tominaga”), Shengdong “Udon” Wu (“Wu”), Hongmei “Jenny” Sun (“Sun”), Guoping “Jack” Chen (“Chen”), Honglin Li (“Li”), Shaoliang “Jackson” Yue (“Yue”), Mingyu “Jake” Yang (“M. Yang”), Yi Liang (“Liang”) (collectively, “Plaintiffs”) allege causes of action against Defendants Palo Alto Cuisine doing business as Imperial Treasure (“Imperial Treasure”), Cheng “D-Day” Han (“Han”), Kun Yang (“Yang”), and Does 1-10. Defendants Imperial Treasure, Han, and Kun Yang (collectively, “Defendants”) demur to Plaintiff’s Second Amended Complaint (“SAC”). Also before the court is Defendants’ motion to strike (“Motion to Strike”).

Defendants’ demurrer is **OVERRULED** in its entirety. Defendants’ motion to strike is **DENIED** in its entirety.

BACKGROUND

Plaintiffs worked for Imperial Treasure. (SAC, ¶¶ 17-18, 20-26.) Plaintiffs allege that they were underpaid, their tips were misappropriated, that they did not receive wage statements, and that they were denied meal and rest breaks. (SAC, ¶¶ 27-64.) Plaintiff Tominaga further alleges that she was subjected to pregnancy-related harassment and discrimination. (SAC, ¶¶ 65-85.) Plaintiff Wu reported concerns about pay and tips and was subsequently threatened and terminated. (SAC, ¶¶ 86-96.)

Tominaga alleges causes of action for (1) sexual harassment; (2) sex discrimination; (3) disability discrimination; (4) failure to engage in the interactive process; (5) failure to provide reasonable accommodation; (6) retaliation; (7) failure to prevent harassment, discrimination, or retaliation against Defendant Imperial Treasure. Plaintiff Wu alleges a cause of action for wrongful termination in violation of public policy against Defendant Imperial Treasure.² Plaintiffs further allege Labor Code violations in causes of action nine through fifteen, though not all causes of action are brought by all Plaintiffs against all Defendants as detailed further below. Defendants demurred to the SAC and moved to strike the SAC’s references to punitive and duplicative damages and “conclusory agency and ratification allegations” on February 25, 2026. (Motion to Strike, 6:18-19.) Plaintiffs opposed on August 5, 2026 (“Opposition”).

I. DEMURRER**A. Legal Standard**

The function of a demurrer is to test the legal sufficiency of a pleading. (*Trs. Of Capital Wholesale Elec. Etc. Fund v. Shearson Lehman Bros.* (1990) 221 Cal.App.3d 617, 621.) Consequently, “[a] demurrer reaches only to the contents of the pleading and such matters as may be considered under the doctrine of judicial notice.” (*Mathews v. Becerra* (2019) 8 Cal.5th 756, 762, internal citations and quotations omitted; see also Code Civ. Proc., § 430.30, subd.

² This cause of action is the eighth cause of action in the SAC.

(a.) “It is not the ordinary function of a demurrer to test the truth of the plaintiff’s allegations or the accuracy with which he describes the defendant’s conduct. ... Thus, ... the facts alleged in the pleading are deemed to be true, however improbable they may be.” (*Align Technology, Inc. v. Tran* (2009) 179 Cal.App.4th 949, 958, internal citations and quotations omitted.)

In ruling on a demurrer, the allegations of the complaint must be liberally construed, with a view to substantial justice between the parties. (*Glennen v. Allergan, Inc.* (2016) 247 Cal.App.4th 1, 6.) Nevertheless, while “[a] demurrer admits all facts properly pleaded, [it does] not [admit] contentions, deductions or conclusions of law or fact.” (*George v. Automobile Club of Southern California* (2011) 201 Cal.App.4th 1112, 1120.)

B. Discussion

1. Tominaga’s Causes of Action against Imperial Treasure

First Cause of Action (Sexual Harassment)

Defendants demur to Plaintiff Tominaga’s cause of action for sexual harassment because the SAC “does not clearly distinguish between alleged conduct that could constitute harassment and alleged employment decisions that form the basis of discrimination or retaliation claims,” thus making the SAC’s allegations uncertain or ambiguous. (Demurrer, p. 11:17-19.)

A pleading is subject to demurrer where it “is uncertain.” (§ 430.10, subd. (f).) For purposes of demurrer, the term “ ‘uncertain’ includes ambiguous and unintelligible.” (*Ibid.*) “Demurrers for uncertainty . . . are disfavored. [Citation.] ‘A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.’ [Citation.]” (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.) “It is the well established rule that a special ‘demurrer should not be sustained where the allegations of the complaint are sufficiently clear to apprise the defendant of the issues which he is to meet. [Citations.] A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made. [Citations.]’ [Citation.]” (*Butler v. Sequeira* (1950) 100 Cal.App.2d 143, 145-146.)

Here, Plaintiff Tominaga alleges that she “was subjected to discriminatory comments about women and pregnant women and decisions that singled her out as a pregnant woman.” (SAC, ¶ 65.) Tominaga further alleges that Defendant Han, who was responsible for payment of wages and other working conditions at Imperial Treasure, told her not to hire women because women are “dramatic,” and referred to women as being harder to manage and “having periods, and being weak.” (SAC, ¶¶ 36, 66.) The SAC states that when Tominaga told Han she was pregnant, he texted her “I do not know how to arrange work for pregnant women, what time to give what work... You also know that it’s impossible for our store to stop and wait for you to give birth... you also know that when I contacted you last year, I specifically mentioned this matter, and you also promised not to get married or have children within three to five years.” (SAC, ¶ 70.) The SAC also alleges that Han yelled at her in person and over the phone. (SAC, ¶¶ 72, 73.) The SAC pleads sex-based harassment and specifies the conduct alleged to be harassment. The SAC thus sufficiently apprises Defendants of the nature of Tominaga’s allegations of sexual harassment.

Defendants' demurrer to the SAC's first cause of action for sexual harassment is OVERRULED.

Second and Third Causes of Action (Sex Discrimination and Disability Discrimination)

Defendants demur to Plaintiff Tominaga's second and third causes of action for sex discrimination and disability discrimination, arguing that those causes of action cannot be maintained against individual defendants and are duplicative.

As Plaintiff points out in opposition, the SAC clearly states that the second and third causes of action are advanced "(By Plaintiff TOMINAGA Against Defendant IMPERIAL TREASURE)." (Opposition, p. 7:12-21.) Defendants' arguments about individually named Defendants are inapposite.

Duplicative causes of action can be a basis for sustaining a demurrer. (See *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290.) However, "under California's primary right theory of code pleading, we determine the causes of action alleged in the complaint based on the injury to the plaintiff, not on the legal theory or theories advanced to characterize it. [Citations] Thus, if a plaintiff states several purported causes of action which allege an invasion of the same primary right he has actually stated only one cause of action. On the other hand, if a plaintiff alleges that the defendant's single wrongful act invaded two different primary rights, he has stated two causes of action[.]" (*Choi v. Sagemark Consulting* (2017) 18 Cal.App.5th 308, 335, internal quotation marks omitted.)

The Fair Employment and Housing Act ("FEHA"), on which the second and third causes of action are based, makes it an unlawful employment practice for an employer, "because of the ... physical disability ... [or] sex ... of any person, ... to discriminate against the person in compensation or in terms, conditions, or privileges of employment." (Cal. Gov't Code, § 12940, subd. (a).) Here, Tominaga has asserted that the same wrongful acts invaded two primary rights: both her right to be protected from sex discrimination as well as her right to be protected from disability discrimination. Thus, Tominaga has stated two distinct causes of action. (See also *Soria v. Univision Radio Los Angeles, Inc.* (2016) 5 Cal.App.5th 570, 585 ["discrimination based on each protected characteristic is a separate claim under FEHA"].)

Defendants' demurrer to the second and third causes of action is OVERRULED.

Fourth through Seventh Causes of Action (Failure to Engage in the Interactive Process; Failure to Provide a Reasonable Accommodation; Retaliation; Failure to Prevent Harassment, Discrimination, and Retaliation)

Defendants demur to the Plaintiff Tominaga's fourth through seventh causes of action because those causes of action cannot be maintained against individual defendants. Much like the second and third causes of action, the SAC states that the fourth through seventh causes of action are advanced by Tominaga against Imperial Treasure. Defendants' arguments about individually named Defendants are thus inapposite.

As such, Defendants' demurrer to the SAC's fourth through seventh causes of action is OVERRULED.

Eighth Cause of Action (Wrongful Termination in Violation of Public Policy brought by Plaintiff Wu against Defendant Imperial Treasure)

Defendants demur to the SAC's eighth cause of action for wrongful termination in violation of public policy, which is brought by Plaintiff Wu against Imperial Treasure. Defendants argue that "the SAC does not identify any independent public policy basis, distinct adverse conduct, or separate damages supporting the 8th Cause of Action apart from the alleged statutory retaliation," and is improperly duplicative. (Demurrer, p. 17:15-22.)

A discharge is actionable as against public policy only if it violates a policy that is: "(1) delineated in either constitutional or statutory provisions; (2) 'public' in the sense that it 'inures to the benefit of the public' rather than serving merely the interests of the individual; (3) well established at the time of the discharge; and (4) 'substantial' and 'fundamental.'" (*Carter v. Escondido Union High School Dist.* (2007) 148 Cal.App.4th 922, 929, internal citations omitted.) Here, the SAC identifies Labor Code section 1102.5 as a statute implicating public policy concerns. (SAC, ¶ 156.) The SAC alleges that Plaintiff Wu was terminated for engaging in protected activity under Labor Code section 1102.5. (SAC, ¶ 157.) The SAC thus properly pleads wrongful termination in violation of public policy. (See *Green v. Ralee Engineering Co.* (1998) 19 Cal.4th 66, 77 ["broad public policy interest in encouraging workplace whistleblowers to report unlawful acts without fearing retaliation" under Labor Code section 1102.5.]; *Diego v. Pilgrim United Church of Christ* (2014) 231 Cal.App.4th 913, 923 [wrongful termination in violation of public policy claim can be based on Labor Code retaliation protections].)

To the extent that Defendants argue the eighth cause of action is improperly duplicative of statutory retaliation claims, this too cannot be a basis for sustaining Defendants' demurrer to the eighth cause of action because Plaintiff Wu does not bring any statutory retaliation claims. The other retaliation claims in the SAC are brought solely by Plaintiff Tominaga. In addition, as Plaintiffs point out in opposition, "[i]f Defendants are claiming that Plaintiff Wu's claim restates itself because the claim relies on Labor Code section 1102.5, their argument is non-sensical: a claim cannot be duplicative of or restate itself." (Opposition, p. 17:22-24.)

Defendants' demurrer to the SAC's eighth cause of action is OVERRULED.

Ninth through Fifteenth Causes of Action (Failure to Pay Minimum Wage; Failure to Pay Minimum and Overtime Wages; Meal and Rest Break Violations; Pay Statement Violations; Misappropriation of Tips; Late Payment of Final Wages; Failure to Indemnify Necessary Expenditures)

The ninth cause of action for failure to pay minimum wage is brought by Plaintiff Tominaga against all Defendants. The tenth cause of action for failure to pay minimum and overtime wages is brought by Plaintiffs Wu, Sun, Chen, Li, Yue, M. Yang, and Yi Liang against all Defendants. The eleventh cause of action for meal and rest break violations is brought by all Plaintiffs against all Defendants. The twelfth cause of action for pay statement violations is brought by Plaintiffs Tominaga, Wu, Sun, Chen, Li, Yue, and Liang against all Defendants. The thirteenth cause of action for misappropriation of tips is brought by Plaintiffs Tominaga, Sun, Li, Yue, and M. Yang against all Defendants. The fourteenth cause of action for late payment of final wages is brought by Plaintiffs Tominaga, Sun, Li, Yue, and M. Yang

against all Defendants. The fifteenth cause of action for failure to indemnify necessary expenditures is brought by Plaintiff Tominaga against all Defendants.

Defendants demur to the SAC's ninth through fourteenth causes of action because the causes of action do not sufficiently plead individual liability and fail to state a claim as to any Defendant. The ninth, tenth, eleventh, twelfth, and fourteenth causes of action are asserted against all defendants. The thirteenth cause of action is addressed to Imperial Treasure only. Accordingly, the court rejects the argument based on individual liability as to the thirteenth cause of action.

The ninth, tenth, eleventh, twelfth, and fourteenth causes of action (for failure to pay minimum wage, failure to pay overtime wage, meal and rest break violations, pay statement violations, and late payment of final wages respectively) are all asserted under Labor Code section 558.1, which forms the basis for individual liability. Labor Code section 558.1 states that "any employer or other person acting on behalf of an employer, who violates, or causes to be violated, any provision regulating minimum wages or hours and days of work...may be held liable as the employer for such violation." (Lab. Code, § 558.1, subd. (a).) To be personally liable, "an individual must have engaged in some affirmative action beyond his or her status as an owner, officer or director of the corporation. However, that does not necessarily mean the individual must have had involvement in the day-to-day operations of the company, nor is it required the individual authored the challenged employment policies or specifically approved their implementation. But to be held personally liable he or she must have had some oversight of the company's operations or some influence on corporate policy that resulted in Labor Code violations." (*Espinoza v. Hepta Run, Inc.* (2022) 74 Cal.App.5th 44, 59.)

Here, the SAC alleges that Defendant Han was responsible for "payment of wages and other working conditions" and that Defendant Kang was a Chief Financial Officer and Chief Executive Officer with authority over Han. (SAC, ¶¶ 35, 36.) The SAC further alleges numerous instances of Han directing or instructing employees, distributing tips to employees, and terminating or hiring employees. (SAC, ¶¶ 27, 38, 39, 67, 69, 93.) The SAC thus alleges that Han and Kang had some oversight over the company's operations such that they could be individually liable for Labor Code violations. (See also *Usher v. White* (2021) 64 Cal.App.5th 883, 897 ["whether an individual could be liable under section 558.1 'cannot be determined by any bright-line rule, as this inquiry requires an examination of the particular facts in light of the conduct, or lack thereof, attributable to the [individual].'"].)

Defendants also demur on the basis that causes of action nine through fourteen fail to state a claim as to any Defendant. Defendants argue that the SAC "asserts multiple wage-and-hour claims on behalf of numerous plaintiffs who worked in different positions, during different time periods, and under different alleged compensation arrangements, yet it does not distinguish which alleged decisions or actions by the individual defendants relate to which plaintiff or which statutory violation. The use of generalized group pleading in this context renders the claims uncertain and fails to provide adequate notice of the factual basis for personal liability." (Demurrer, p. 10:5-10.) Defendants further argue that "SAC does not allege representative workweeks, identify specific pay periods in which statutory violations occurred, or plead calculations showing how compensation resulted in minimum wage or overtime violations for particular plaintiffs during identifiable periods of employment." (Demurrer, p. 12:18-22.)

Defendants do not provide any authority establishing that Plaintiffs are required to plead wage violations with the granular level of detail suggested. (See *People v. Dougherty* (1982) 138 Cal.App.3d 278, 282 [a point asserted without argument or authority in support is without foundation and requires no discussion].)

Defendants further argue that the twelfth cause of action for pay statement violations “does not plead facts showing a knowing and intentional failure to comply with Labor Code section 226 or facts showing injury resulting from the alleged deficiencies, both of which are required elements of the claim.” (Demurrer, p. 13:8-11.) This point is again made without authority. Moreover, “an employee has a statutory right to an accurate pay stub, and “a very modest showing...[of injury] will suffice” to recover damages under the statute. (*Jaimez v. Daiohs USA, Inc.* (2010) 181 Cal.App.4th 1286, 1306.)

Defendants advance a similar argument with respect to the SAC’s fourteenth cause of action for late payment of final wages. Defendants argue that the SAC does not sufficiently plead waiting time penalties because it does not plead that the delay was willful as required by Labor Code section 203, but Defendants provide no supporting authority for that proposition. (See *People v. Dougherty, supra*, 138 Cal.App.3d at p. 282.)

In addition, while the SAC does assert multiple wage-and-hour claims on behalf of numerous plaintiffs, the SAC specifies which allegation and cause of action is brought by which plaintiff against which defendant and clearly alleges that Plaintiffs worked for Defendants and were not paid minimum or overtime wages, not given meal or rest breaks, not given pay statements, not given tips appropriately, and not given their final wages within 72 hours. (SAC, ¶¶ 162-164, 168-170, 173-182, 186-188, 192, 196-202.) “To survive demurrer, a plaintiff is only required to plead ultimate facts . . . Whether [they] can produce at trial, or in response to a motion for summary judgment, *evidence* that will in fact support all or any of [their] allegations . . . is another matter.” (*Roger v. County of Riverside* (2020) 44 Cal.App.5th 510, 533, internal citations and quotation marks omitted, emphasis in original.) “A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Chen v. Berenjian* (2019) 33 Cal.App.5th 811, 822.)

Defendants contend they are demurring to all causes of action but fail to make any argument regarding the fifteenth cause of action. As such, to the extent the demurrer is targeting the fifteenth cause of action, Defendants’ demurrer to the fifteenth cause of action is OVERRULED. (See *WFG National Title Ins. Co. v. Wells Fargo Bank, N.A.* (2020) 51 Cal.App.5th 881, 895 [arguments unsupported by legal analysis or record citations are deemed forfeited].)

Defendants’ demurrer to Plaintiffs’ SAC is OVERRULED.³

II. MOTION TO STRIKE

³ The court acknowledges Plaintiffs’ request for leave to amend in Plaintiffs’ opposition papers to add plaintiffs to certain causes of action. A request for leave to amend must include a copy of the proposed amendment or amended pleading. (Cal. Rules of Court, rule 3.1324(a)(1).) Plaintiffs’ request for leave to amend to add plaintiffs to certain causes of action is denied for not being filed in accordance with rules of court.

A. Legal Standard

A court may strike out any irrelevant, false, or improper matter asserted in a pleading. (Code Civ. Proc., § 436, subd. (a).) A court may also strike out all or any part of a pleading not drawn or filed in conformity with the laws of the State of California. (Code Civ. Proc., § 436, subd. (b).) The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice. (Code Civ. Proc., § 437, subd. (a).) The court's decision to strike the petition pursuant to section 436 is discretionary. (See Code Civ. Proc., § 436 ["The court may . . . strike"].)

B. Punitive Damages

Defendants move to strike Plaintiffs' request for punitive damages in the SAC on the grounds that the SAC "does not identify particular acts constituting despicable conduct, facts showing a willful and conscious disregard of rights, or factual allegations demonstrating advance knowledge, authorization, or ratification by an officer, director, or managing agent as required[.]" (Motion to Strike, p. 5:26-28.)

Civil Code section 3294 allows for punitive damages on a showing that a defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) Civil Code section 3294, subdivision (b) states that an employer cannot be liable for punitive damages for the actions of an employee unless "the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice." (Civ. Code, § 3294, subd. (b).) "With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation." (*Ibid.*)

"The term managing agent includes only those corporate employees who exercise substantial independent authority and judgment in their corporate decisionmaking so that their decisions ultimately determine corporate policy. [T]o demonstrate that an employee is a true managing agent . . . , a plaintiff seeking punitive damages would have to show that the employee exercised substantial discretionary authority over significant aspects of a corporation's business. But the determination of whether certain employees are managing agents does not necessarily hinge on their level in the corporate hierarchy. Rather, the critical inquiry is the degree of discretion the employees possess in making decisions" (*Powerhouse Motorsports Group, Inc. v. Yamaha Motor Corp., U.S.A.* (2013) 221 Cal.App.4th 867, 886, internal citations and quotation marks omitted.)

Defendants move to strike "[a]ll allegations seeking punitive damages, including but not limited to paragraphs 117, 122, 127, 133, 139, and 148, and the corresponding portions of the Prayer for Relief, on the grounds that such allegations are conclusory and fail to satisfy the requirements of Civil Code section 3294, and in part seek relief not recoverable as a matter of law." (Motion to Strike, p. 7:22-26.) Paragraphs 117, 122, 127, 133, 139, and 148 of the SAC all seek punitive damages under the first six causes of action wherein Plaintiff Tominaga alleges that Defendants discriminated against her based on her sex and disability, failed to engage in the interactive process, failed to provide a reasonable accommodation, and retaliated against her. (SAC, ¶¶117, 122, 127, 133, 139, and 148.) Plaintiff Tominaga alleges that

Defendant Han made discriminatory comments and yelled at her multiple times. (SAC, ¶¶ 65, 66, 72, 73.) The SAC's punitive damages allegations are thus not conclusory or insufficient to show oppression, fraud, or malice. (See *Zirpel v. Alki David Productions, Inc.* (2023) 93 Cal.App.5th 563, 580 [punitive damages proper where agent of employer yelled at and terminated employee for reporting workplace safety concerns]; *Gober v. Ralphs Grocery Co.* (2006) 137 Cal.App.4th 204, 221-222 [punitive damages proper in sexual harassment case].)

In addition, the SAC alleges that Defendant Han acted as a managing agent of Defendant Imperial Treasure because the SAC alleges that Han was responsible for "payment of wages and other working conditions," and mentions numerous instances of Han directing or instructing employees, distributing tips to employees, and terminating or hiring employees. (SAC, ¶¶ 27, 36, 38, 39, 67, 69, 93.) The SAC thus adequately alleges that Defendant Han acted as a managing agent of Defendant Imperial Treasure and Han's conduct towards Plaintiff Tominaga is sufficient to allege oppression, fraud, or malice.

Accordingly, the motion to strike punitive damages is DENIED.

C. Agency Allegations

Defendants move to strike "the conclusory agency and ratification allegations in paragraphs 15 and 16 of the SAC." (Motion to Strike, p. 6: 18-20.) Defendants argue that "no facts are stated showing how any defendant authorized or controlled the others, what specific scope of authority existed, or how any defendant manifested consent to another's acts. Without factual detail as to the specific agency relationship or showing ratification with knowledge and intent, these claims are indistinguishable from mere conclusions." (*Id.* at p. 6:12-17.) Paragraphs 15 and 16 of the SAC are excerpted below.

DOES 1–10 (hereinafter, "Doe Defendants") are individuals whose true identities and capacities are as yet unknown to the Plaintiff and her counsel, despite diligent inquiry and investigation, and who are responsible in some manner for the occurrences and Plaintiff's injuries, as herein alleged. The true names and capacities of Doe Defendants will be substituted as they become known. Plaintiff is informed and believes, and thereupon alleges, that at all times herein mentioned, Doe Defendants were the agents, servants, and/or employees of each of the other Defendants and/or Doe Defendants and were acting with the permission and consent and within the course and scope of said agency and employment. For purposes of this Complaint, IMPERIAL TREASURE'S policymakers, administrators, and/or persons with supervisory or decision-making authority regarding the issues that are the subject of this Complaint are designated as DOES 1–5. DOES 6–10 are IMPERIAL TREASURE'S employees without supervisory or decision-making authority who may be liable on the Complaint but who have not yet been discovered and named. DOES 1–10 are sued herein in their individual capacities.

(SAC, ¶ 15.)

At all times herein mentioned, each Defendant was an employee and agent of each remaining Defendant and acted within the scope of said employment and

agency when committing the acts and omissions described in this Complaint. Plaintiff believes and alleges that each wrongful act and omission was committed with express or implied approval of every other Defendant and that each Defendant ratified and approved all acts and omissions of others.

(SAC, ¶ 16.)

The SAC does not make conclusory allegations about agency and ratification such that paragraphs 15 and 16 should be stricken, as the SAC alleges facts regarding each Defendant's agency and ratification elsewhere. The SAC alleges that Defendant Imperial Treasure is a California corporation for which Defendants Han and Kang worked, and Defendant Han was responsible for "payment of wages and other working conditions" while Defendant Kang was a Chief Financial Officer and Chief Executive Officer with authority over Han. (SAC, ¶¶ 11-13, 35, 36.) The SAC further alleges numerous instances of Han directing or instructing employees, distributing tips to employees, and terminating or hiring employees. (SAC, ¶¶ 27, 38, 39, 67, 69, 93.) The SAC thus sufficiently alleges that Defendants Han and Kang acted within the scope of their employment while working for Defendant Imperial Treasure. Moreover, even if the SAC did not make those additional factual allegations, "general allegations of agency suffice to establish...that defendants are the agents of plaintiffs," and "an allegation of agency...is a statement of ultimate fact," not a conclusion of law. (*Skopp v. Weaver* (1976) 16 Cal.3d 432, 437, 439.)

Defendants' motion to strike paragraphs 15 and 16 of the SAC is DENIED.

D. Duplicative Penalties

Defendants also move to strike "the portions of the Prayer for Relief seeking duplicative penalties, restitution, or other monetary recovery for the same alleged wage-and-hour conduct, on the grounds that duplicative recovery is impermissible as a matter of law." (Motion to Strike, p. 8:2-6.) Defendants provide no authority or argument on this point. Defendants' motion to strike references to duplicative penalties in the SAC is DENIED. (*See WFG National Title Ins. Co. v. Wells Fargo Bank, N.A.* (2020) 51 Cal.App.5th 881, 895 [arguments unsupported by legal analysis or record citations are deemed forfeited]; *People v. Dougherty, supra*, 138 Cal.App.3d 278, 282.)

Defendants' motion to strike is DENIED in its entirety.

III. CONCLUSION

Defendants' demurrer is OVERRULED in its entirety. Defendants' motion to strike is DENIED in its entirety.

The court will prepare the Order.

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Calendar line 9

Case Name: *Lumenis Be Inc. v Iyad Radwan*

Case No.: 25CV480131

PETITION TO COMPEL ARBITRATION AWARD

The parties entered into a written agreement requiring binding arbitration before the American Arbitration Association. Following an evidentiary hearing, the arbitration panel issued a Final Award on June 6, 2025. The Award was served on Petitioner on June 18, 2025. Petitioner timely filed this Petition on November 18, 2025.

Respondent was served by substitute service on April 17, 2026, at his place of business followed by mailing on April 18, 2026. Proof of Service was filed with the court on June 11, 2026. No response or opposition has been filed by Respondent to date.

The Petition satisfies the requirements of Code of Civil Procedure section 1285.4, and no timely petition or response seeking to vacate or correct the Award has been filed. Respondent's June 21, 2025 email to arbitration panel stating that he did not accept the Award and reserved his rights to challenge it does not constitute a petition or response seeking vacatur or correction and does not extend the statutory time to seek such relief. No basis for vacatur, correction, or dismissal has been presented. Accordingly, pursuant to Code of Civil Procedure section 1286, the Court shall confirm the Award.

Pursuant to Code of Civil Procedure section 1287.4, judgment shall be entered in conformity with the Final Award, in the amount of \$66,858.32.

The Petitioner is also entitled to costs and prejudgment interest on the amount fixed by the Award at 10 percent per annum pursuant to Civil Code section 3287(a), from June 6, 2025 through entry of judgment.

Accordingly, the petition to confirm the arbitration award is GRANTED.

Petitioner to file the final proposed order, accompanied by the necessary form EFS-020 within 7 days of the hearing.

Calendar line 10

Case Name: *Orchard Yield Funds, LLC v. Park Capital Management, LLC*

Case No.: 26-CV-485647

Verified Application to Expel Respondent Park Capital Management, LLC from Petitioner Orchard Yield Funds, LLC Pursuant to California Corporations Code Section 17706.02

Requests for Judicial Notice

The requests for judicial notice are DENIED as these materials are not relevant to the outcome of the application for reasons articulated below. (See *Gbur v. Cohen* (1979) 93 Cal.App.3d 296, 301[information subject to judicial notice must be relevant to the issue at hand]; see also *Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal.4th 739, 748, fn. 6 [a court need not take judicial notice of a matter unless it “is necessary, helpful, or relevant”].)

Discussion

The instant application to expel respondent Park Capital Management, LLC (“Park Capital”) is brought under Corporations Code section 17706.02, subdivision (e) which provides:

“(e) On application by the limited liability company, the person is expelled as a member by judicial order because the person has done any of the following:

- (1) Engaged, or is engaging, in wrongful conduct that has adversely and materially affected, or will adversely and materially affect, the limited liability company’s activities.
- (2) Willfully or persistently committed, or is willfully and persistently committing, a material breach of the operating agreement or the person’s duties or obligations under Section 17704.09.
- (3) Engaged, or is engaging, in conduct relating to the limited liability company’s activities that makes it not reasonably practicable to carry on the activities with the person as a member.” (Corp. Code, § 17706.02, subd. (e).)

But, as respondent Park Capital explains in its opposition papers, the application to expel does not appear to be properly before the court.

“Judicial remedies are divided into two classes: actions and special proceedings. (Code Civ. Proc., § 21.) ‘An action is an ordinary proceeding in a court of justice by which one party prosecutes another for the declaration, enforcement, or protection of a right, the redress or prevention of a wrong, or the punishment of a public offense.’ (Code Civ. Proc., § 22.) ‘Every other remedy is a special proceeding.’ (Code Civ. Proc., § 23.) ‘Every other remedy is a special proceeding.’ (Code Civ. Proc., § 23.) As a general rule, a special proceeding is statutory in origin and does not proceed according to common law. [Citation.]” (*Bagrations v. Super. Ct.* (2003) 110 Cal.App.4th 1677, 1684-1685 (*Bagrations*).)

“In the trial courts, civil actions (such as lawsuits or damages or equitable relief) and special proceedings (such as writ petitions) are commenced when the plaintiff’s complaint or petition is filed with the court.” (*Garcia v. Lacey* (2014) 231 Cal.App.4th 402, 411; see Code Civ.

Proc., § 411.10 [“A civil action is commenced by filing a complaint with the court.”]; Code Civ. Proc., § 350 [“An action is commenced, within the meaning of this title, when the complaint is filed.”]; see also *Allen v. Humboldt County Board of Supervisors* (1963) 220 Cal.App.2d 877, 884-885 [writ of mandate petition subject to same rules regarding commencement of civil actions].) “The pleadings allowed in civil actions are complaints, demurrers, answers, and cross-complaints.” (Code Civ. Proc., § 422.10.)

A complaint or cross-complaint shall contain both of the following: (1) a statement of facts constituting the cause of action, in ordinary and concise language; and (2) a demand for judgment for the relief to which the pleader claims to be entitled. (Code Civ. Proc., § 425.10.) “A cause of action is simply the obligation sought to be enforced against the defendant.” (*Turner v. Milstein* (1951) 103 Cal.App.2d 651, 657.) Stated another way, “a ‘cause of action’ is comprised of a ‘primary right’ of the plaintiff, a corresponding ‘primary duty’ of the defendant, and a wrongful act by the defendant constituting a breach of that duty.” (*Crowley v. Katleman* (1994) 8 Cal.4th 666, 681.)

“Special proceedings of a civil nature, located in part 3 of the Code of Civil Procedure, include extraordinary writs of mandate and prohibition, summary proceedings (such as unlawful detainer), contempt, eminent domain and arbitration. In other codes, special proceedings include probate, guardianship, adoption, conservatorship, juvenile dependency, commitment of dangerous individuals (including sexually violent predators), persons disabled by mental illness, developmental disability, narcotics and alcohol addiction.” (*People v. Cole* (2008) 165 Cal.App.4th Supp. 1, 13; *Bagratiun, supra*, 110 Cal.App.4th at pp. 1684-1685, fn. 7.)

Furthermore, “[a] summons is the process by which a court acquires personal jurisdiction over a defendant in a civil action.” (*Mjs Enters. v. Super. Ct.* (1984) 153 Cal.App.3d 555, 557.) “‘A summons in an action or proceeding is issued by the clerk of the court, to be served on the defendant in a manner authorized by law. It is the usual means by which the court gives jurisdictional notice to the defendant, directs the defendant’s appearance, and thus acquires jurisdiction of the defendant’s person. [Citations.] A summons may be had at the simple request of the plaintiff and may be served either by a court officer or a private individual.’ [Citation.]” (*Torrey Hills Community Coalition v. City of San Diego* (2010) 186 Cal.App.4th 429, 435.) Compliance with statutory procedures for service of process is essential to establish personal jurisdiction. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 387.)

Here, the verified application to expel respondent Park Management as a member does not constitute a “pleading” or complaint alleging causes of action as contemplated by the Code of Civil Procedure. Nor does the application qualify as a “special proceeding” as that term is used in the Code of Civil Procedure. And, as it is neither a pleading nor a matter subject to a special proceeding, there has not been compliance with the statutory procedures for service of process which is essential for establishing personal jurisdiction. Thus, the verified application, for these reasons, does not appear to be properly before the court for resolution.

In reply, petitioner Orchard Yield Funds, LLC (“OYF”) attempts to characterize the verified application as a special proceeding. But, there is no legal authority holding that such an application constitutes a special proceeding. Nor does the Code of Civil Procedure recognize the instant application as a special proceeding. And it is the job of the legislature, not the court’s, to amend the statute to indicate it as such. (See *People v. Weir* (2019) 33 Cal.App.5th

868, 881 [“The Legislature clearly can amend either statute if it disagrees with our interpretation, but as an intermediate Court of Appeal, we refuse to usurp the role of the Legislature by rewriting statutes.”].)

But, as the court sees it, the real problem here is that petitioner OYF is seeking dispositive relief by way of this verified application absent compliance with the Code of Civil Procedure and specifically the rules which would normally accompany a motion for summary judgment under Code of Civil Procedure section 437c. In essence, the court, in granting such “fast track” relief, would be denying respondent Park Capital the opportunity to file an answer (or other responsive pleading), conduct civil discovery, submit admissible evidence raising a triable issue of material fact to defeat any motion for summary judgment, or dispute the application at trial. It is for that reason that courts require such strict compliance when it comes to motions for summary judgment. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 [“The purpose of the law of summary judgment is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.”]; see also *Sierra Craft, Inc. v. Magnum Enterprises, Inc.* (1998) 64 Cal.App.4th 1252, 1256 [“Summary judgment, although a very useful tool in litigation, is also a drastic remedy. Because of this, it is important that all of the procedural requirements for the granting of such a motion be satisfied before the trial court grants the remedy.”].)

This is not to say that the verified application fails on its merits. Instead, as proposed by respondent Park Capital, petitioner OYF could simply re-file its application as part of a civil complaint for declaratory relief (or another cause of action) in order to seek the requested remedy. The court however will defer to petitioner counsel’s expertise as to the appropriate causes of action to be incorporated in any civil complaint. In doing so, the newly filed civil action addressing the verified application can be properly heard on its merits by the court in accordance with the Code of Civil Procedure.

Based on the foregoing, the verified application to expel Park Management from OYF under Corporations Code section 17706.02 is DENIED. This ruling is WITHOUT PREJUDICE to petitioner OYF re-filing its verified application as part of a civil action or other proceeding recognized by the Code of Civil Procedure. The court’s ruling also makes no determination on the merits of the verified application.

The court will prepare the Order.

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LINE 11-12

Case Name: *Linda Johnson et al. vs Hanford Hotels, Inc. et al.*

Case No.: 25CV477676

Petitioner's Application to Seal Portions of Moving Papers in Support of Petition for Approval of Minor's Compromise (Continued from August 5, 2026)

PROCEDURAL BACKGROUND

This wrongful death action arises from the death of Terril Wade Johnson, Sr., who died on May 22, 2025, from severe scalding burns sustained in a hotel shower at the Fairfield by Marriott Inn & Suites San Jose Airport. Plaintiffs filed the complaint on October 15, 2025. The Court granted mandatory trial preference under Code of Civil Procedure section 36(a) on January 23, 2026, based on the advanced age and serious illness of plaintiff Linda Johnson, the decedent's surviving spouse. The parties reached a global settlement on May 14, 2026.

Petitioner moves pursuant to California Rules of Court, rules 2.550 and 2.551, for an order sealing portions of the moving papers filed in support of the petition for approval of minor's compromise. Petitioner seeks to seal information subject to the confidentiality provisions of the settlement agreement, including the settlement amount, as well as the minor's mental health records.

GOVERNING LAW

Unless confidentiality is required by law, court records are presumed to be open. Cal. Rules of Court, rule 2.550. The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) there exists an overriding interest that overcomes the right of public access to the record; (2) the overriding interest supports sealing the record; (3) a substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) the proposed sealing is narrowly tailored; and (5) no less restrictive means exist to achieve the overriding interest. Cal. Rules of Court, rule 2.550, (Timothy W. v. Julie W. (2022) 85 Cal.App.5th 648)

An order sealing the record must specifically state the facts that support the findings and direct the sealing of only those documents and pages, or portions thereof, that contain the material that needs to be placed under seal. Cal. Rules of Court, rule 2.550. The court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. Cal. Rules of Court, rule 2.551.

The public has a First Amendment right of access to civil litigation documents filed in court and used at trial or submitted as a basis for adjudication. (NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178) ; Savaglio v. Wal-Mart Stores, Inc. (2007), 149 Cal. App. 4th 588. Under the California Constitution, the people have the right of access to information concerning the conduct of the people's business, and court records are presumptively open to public scrutiny. Cal Const, Art. I § 3.

A party seeking to seal documents must come forward with a specific enumeration of the facts sought to be withheld and specific reasons for withholding them. *H.B. Fuller Co. v. Doe*, (2007) 151 Cal. App. 4th 879. A reasoned decision about sealing records cannot be made without identifying the specific information claimed to be entitled to such treatment, the nature of the harm threatened by disclosure, and countervailing considerations.

Individuals have a recognized privacy interest in their medical and mental health records that can constitute an overriding interest under rule 2.550(d). *Overstock.com, Inc. v. Goldman Sachs Group, Inc.*, (2014) 231 Cal. App. 4th 471. The court must balance the privacy interest against the public right of access, mandating sealing only where an overriding privacy interest would be prejudiced, the sealing is narrowly tailored, and no less restrictive means (such as redaction) suffice.

The protection of trade secrets and confidential financial information of third parties may constitute overriding interests supporting sealing. However, a settlement agreement containing a confidentiality clause may not be sealed merely because of the confidentiality provision; an overriding interest and specific showing of serious injury are required. (*Huffy Corp. v. Superior Court* (2003) 112 Cal.App.4th 97.)

ANALYSIS

Medical and Mental Health Records (Attachment 8)

The Court finds that Petitioner has established good cause to seal Attachment 8 to the Petition, which contains Terrilynn Johnson's confidential medical and mental health records.

Overriding Interest

Individuals have a recognized privacy interest in their medical and mental health records that constitutes an overriding interest under California Rules of Court, rule 2.550(d). Article I, section 1 of the California Constitution grounds the right to privacy in confidential medical and mental health affairs. The privacy interest in mental health treatment records is particularly strong given their intimate and sensitive nature.

Here, Attachment 8 contains records and information regarding minor Terrilynn Johnson's private medical and mental health treatment arising from the traumatic death of her grandfather. Terrilynn is a minor, and her mental health treatment addresses the psychological impact of her grandfather's death by scalding. This constitutes an overriding interest that overcomes the right of public access to the record.

Substantial Probability of Prejudice

Disclosure of Terrilynn Johnson's mental health records on the public record would embarrass and distress her by exposing intimate details of her mental health history. The Court finds a substantial probability that Terrilynn's privacy interest will be prejudiced if these records are not sealed, particularly given her status as a minor and the sensitive nature of mental health treatment following a family member's traumatic death.

Narrowly Tailored

The proposed sealing is narrowly tailored because it is limited solely to Attachment 8, which contains the medical and mental health records themselves. The Petition itself will remain public, as will the Court's order approving the compromise (subject to redaction of confidential settlement terms, discussed below). The sealing extends only to the specific documents containing the protected health information.

No Less Restrictive Means

The Court finds no less restrictive means exist to protect Terrilynn Johnson's mental health privacy. Redaction would be insufficient because the records are relevant only to the Court's evaluation of the Petition and serve no public function. The records are attached to demonstrate the nature and extent of Terrilynn's injuries and the reasonableness of the proposed allocation; they are not used to adjudicate a disputed claim or establish a legal precedent requiring public scrutiny.

The Court expressly finds that sealing Attachment 8 (Terrilynn Johnson's medical and mental health records) satisfies all requirements of California Rules of Court, rule 2.550(d).

Settlement Amount and Financial Terms

Petitioner seeks to seal the settlement amount and financial terms disclosed in forms MC-350, MC-351, and MC-355 based solely on the confidentiality provisions of the parties' Settlement Agreement. Petitioner expressly disclaims any independent advocacy for sealing this information and takes no position on whether the confidentiality terms satisfy the legal requirements for sealing.

The Court finds that Petitioner has not met the burden of establishing good cause to seal the settlement amount.

Party Stipulation Insufficient

A court must not permit a record to be filed under seal based solely on the agreement or stipulation of the parties. A settlement agreement containing a confidentiality clause may not be sealed merely because of the confidentiality provision; an overriding interest and specific showing of serious injury are required..

No Specific Showing of Overriding Interest or Prejudice

Petitioner has not identified any overriding interest that would be prejudiced by disclosure of the settlement amount beyond the parties' contractual agreement to keep it confidential. No defendant has filed a declaration or memorandum articulating a specific business interest, competitive harm, or other cognizable injury that would result from public disclosure of the settlement amount.

The Court recognizes that Petitioner filed this motion to comply with contractual obligations and reserved the right to challenge the confidentiality provision. However, the burden of

establishing good cause for sealing rests on the party seeking the sealing order. A reasoned decision about sealing records cannot be made without identifying the specific information claimed to be entitled to protection, the nature of the harm threatened by disclosure, and countervailing considerations.

Public Interest in Settlement Amounts

Court records concerning settlements in wrongful death cases arising from injuries at public accommodations implicate a strong public interest. The public has a right of access to information concerning the conduct of the people's business, including judicial proceedings and court-approved settlements. Cal Const, Art. I § 3. The settlement amount in a court-approved minor's compromise is a material fact relevant to the Court's exercise of its authority to approve or reject the settlement as fair and reasonable.

The burden rests on the party seeking to deny public access to court records to establish compelling reasons why and to what extent the records should be made private. *Copley Press v. Superior Court*, (1988) 63 Cal. App. 4th 367. Here, no party has carried that burden with respect to the settlement amount.

DISPOSITION

At the August 5, 2026 hearing, the Court continued the matter to permit Defendants an opportunity to make the evidentiary showing required by California Rules of Court, rule 2.550(d) with respect to the settlement amount. The Court directed Defendants to file, within seven days, a declaration and memorandum establishing with specificity: (1) the overriding interest that would be prejudiced by disclosure; (2) the substantial probability that the interest would be prejudiced absent sealing; (3) why the proposed sealing is narrowly tailored; and (4) why no less restrictive means exist to achieve the asserted overriding interest.

No Defendant filed the required declaration or memorandum within the time permitted. Petitioner has not otherwise provided a basis for sealing the settlement amount beyond the confidentiality provision contained in the settlement agreement.

The Court therefore finds that there is no evidentiary basis upon which to make the findings required by rule 2.550(d) to support continued sealing of the settlement amount. The existence of a private confidentiality agreement, standing alone, does not establish an overriding interest sufficient to overcome the right of public access to court records.

Accordingly, the request to seal the settlement amount disclosed in forms MC-350, MC-351, and MC-355 is **DENIED**, and the settlement amount shall be unsealed and made part of the public record.

The Court reaches a different conclusion as to the minor's mental health records. The records contain highly sensitive and private medical information concerning the minor. The Court finds that the minor's privacy interest in maintaining the confidentiality of such information constitutes an overriding interest that overcomes the right of public access. There is a substantial probability that the minor's privacy interest would be prejudiced absent sealing. The

requested sealing is narrowly tailored to the confidential mental health records, and no less restrictive means would adequately protect the minor's privacy interest.

Accordingly, the request to seal the minor's mental health records is **GRANTED**.

Plaintiff/Petitioner to prepare the final proposed order, accompanied by the necessary EFS-020 within 7 days of the hearing.